

New Style Employment and Support Allowance (ESA) Factsheet

What is Employment and Support Allowance?

Employment and Support Allowance (ESA) is a benefit paid to people whose ability to work is limited by ill health or disability.

To get ESA you must:

- Be at least 16 years old
- Be under pensionable age. Check your State Pension age using the State Pension Calculator at www.gov.uk
- Undergo a 13 week assessment phase (see page 2)
- Have 'limited capability for work'
- Be resident in Great Britain
- Not be entitled to Statutory Sick Pay

AND satisfy the following condition:

- You must have paid enough National Insurance contributions in the last two full tax years. However, there are exceptions to this, so check with your local Jobcentre to discuss your individual circumstances.

How to claim ESA

You can apply for New Style ESA online.

You'll need:

- Your National Insurance number
- Your bank or building society account number and sort code (you can use a friend or family member's account if you do not have one)
- Your doctor's name, address and telephone number

- A fit note (sometimes called a 'sick note' or a 'statement of fitness for work') if you've not been able to work for more than 7 days in a row because of a disability or health condition
- Details of your income if you're working
- The date your Statutory Sick Pay (SSP) ends if you're claiming it

You must apply by phone if you're an appointee applying on behalf of someone else. Call the Universal Credit helpline to apply for New Style ESA.

Telephone: 0800 055 6688 (choose option 3)

What happens after you claim: The Assessment Phase

The assessment phase applies to all new ESA claimants although there are some exceptions, i.e. those who are terminally ill. The assessment phase is intended to last 13 weeks; however it may take longer than this.

During the assessment phase a work capability assessment (WCA) is carried out. This assessment has two parts with the intention to:

- Firstly find out whether you have a 'limited capability for work' and
- Secondly, to find out whether you have a 'limited capability for work-related activity'.

Limited capability for work test

The limited capability for work test decides whether you are entitled to ESA. If you do not pass the test, because you are not considered to have a 'limited capability for work' you have the right to challenge this by asking for a mandatory reconsideration (see page 4).

There are two stages to the test:

Firstly an ESA50 form will be sent to you to complete. This is a medical questionnaire which asks about your ability to carry out physical and mental activities. It also asks about any medical history and treatment you may be having.

Secondly, most claimants will be asked to attend a medical assessment where a health professional will discuss your ESA50 form with you. Medical assessments are predominantly carried out at an assessment centre. If you require a home visit you will need to request this and provide medical evidence to demonstrate why you require this.

The test assesses your ability to carry out 17 physical and/or mental activities. Within each activity there are a list of 'descriptors' with scores ranging from 0 -15. The descriptors describe the activity at varying degrees of difficulty. You score points based on your limitations for carrying out that activity.

It is possible however, that more than one descriptor will apply to you. Where this is the case, the highest scoring descriptor is the one that will be applied. You can download these descriptors from the Employment and Support Allowance pages at www.nottinghamshire.gov.uk

At the end of the assessment your total score will be added up. To be assessed as having 'limited capability for work' you need to score a total of 15 points across the 17 activities. If you score 15 points you will continue to receive ESA. Not all 17 of the activities will necessarily apply to you. It is possible to score 15 points in just one single activity. The assessment will take into account your abilities when using any aid or appliance you would normally use.

The physical activities

The physical functions in the limited capability for work test are grouped into 10 different types of activity.

Examples include:

- Standing and sitting
- Reaching
- Making yourself understood through speaking, writing, typing or other means, unaided by another person

The mental, cognitive and intellectual activities

These functions in the limited capability for work test are grouped into 7 different types of activity. Examples include:

- Learning tasks
- Awareness of everyday hazards (such as boiling water or sharp objects)
- Coping with change
- Coping with social engagement due to cognitive impairment or mental disorder

The full list of the physical and mental activities can be viewed online or downloaded at www.nottinghamshire.gov.uk on the Employment and Support Allowance pages.

Some people are automatically treated as having 'limited capability for work', for example if you are terminally ill, have recently given birth, are a hospital inpatient or have severe problems with eating and swallowing (see page 3)

Limited capability for work-related activity

This is the second part of the test within the WCA. Once you have been assessed as having 'limited capability for work' (i.e. you have scored 15 points or more) you are then assessed to see if you also have a 'limited capability for work-related activity'.

This is used to determine whether you are placed in the 'Support Group' or the 'work-related activity group'. The group you are placed in determines both the amount of ESA you will be paid and the responsibilities you will need to meet in order to continue getting the benefit.

This part of the test has a separate set of 16 activities, relating to physical and mental functions. The activities include:

- Transferring from one seated position to another
- Reaching
- Appropriateness of behaviour with other people, due to cognitive or mental disorder

The test looks at whether any **one** of the 16 activities applies to you. If so, you will be treated as having 'limited capability for work related activity' and you will be placed into the Support Group.

The assessment usually takes into account your abilities when using any aid or appliance you would normally use.

Who is automatically treated as having limited capability for work related activity?

Some people can be automatically treated as having 'limited capability for work related activity' and placed in the support group. This occurs in the following circumstances:

- You are terminally ill
- You are due to receive, are receiving, or recovering from specific forms of chemotherapy
- You suffer from a specific disease or bodily or mental disablement and consequently there would be a substantial risk to the mental or physical health of any person
- You are pregnant and there would be a serious risk to you or your child's health

If you are not found to have a 'limited capability for work related activity', either by passing the test or on automatic grounds, you will be placed in the work-related activity group.

If you are placed in the work-related activity group you will be required to attend a 'work focused interview' following the assessment. You will then be expected to take part in a series of these interviews throughout your claim.

During the interviews you and a personal advisor will discuss work related activities and complete an action plan listing the steps you are willing to take to enhance your job prospects. You may be asked to undertake some work-related activity, however you will not be asked to apply for a job or undertake any work.

Sanctions

You must attend both the initial work focused interview and the follow up interviews. If you fail to attend without good reason your ESA may be sanctioned and paid at a reduced rate or even stopped. Once you comply with the requirement your benefit will be paid in full.

Sanctions are applied only when you have been placed in the work related activity group and are not applied during the 13 week assessment phase.

However, if you fail to take part in the assessment phase (i.e. you fail to return the ESA50 form) your ESA can be stopped. You can challenge a sanction by asking for a 'mandatory reconsideration' of the decision (see page 4).

How much ESA do you get?

ESA is paid at different rates depending on your circumstances.

During the 13 assessment phase you will be paid a basic weekly rate of ESA. This will then increase if you pass the assessment phase and the group you are placed in is decided. See below for the weekly rates of pay:

Weeks 1-13 (assessment phase)

Under 25	£72.90
25+	£92.05

After week 13 (main phase)

Under 25	£92.05
25+	£92.05

Once you have passed the assessment phase and are in the main phase of your ESA claim, you are paid the rates shown above plus an additional amount if you are found to have

'limited capability for work related activity'. See below:

Support Group component: £48.50

Can I work whilst claiming ESA?

You can undertake voluntary work for a charity or voluntary organisation and still be entitled to ESA. You must not however, receive payment for any work done. You will be treated as not entitled to ESA during any week in which you are in paid work unless it is treated as 'permitted work'.

You are allowed to try some work within limits without it affecting your ESA, providing any earnings are within ESA permitted work rules. Permitted work earnings are not treated as income and so will not affect the amount of ESA you get.

There 3 types of permitted work:

The lower limit - This allows you to earn no more than £20 per week (work has to be paid at national minimum wage or above).

The higher limit - This allows you to earn up to £195.50 per week and you must be working under 16 hours (work has to be paid at national working wage or above)

Supported permitted work - This is work which is supervised by someone from an organisation which provides or arranges work for people with disabilities. You can earn up to £195.50 per week for an indefinite period.

Get advice if you are considering any form of work or training whilst claiming ESA to determine how it will affect your benefit.

How do I challenge a decision about my ESA?

You can challenge almost all ESA decisions including the imposing of a sanction. You can do this by asking ESA to reconsider a decision they have made either verbally, over the phone or in writing. This is called a 'mandatory reconsideration' and must be

requested within 1 calendar month of receiving the decision notice. See our factsheet 'Challenging a benefits decision' which is available on our benefit web pages at www.nottinghamshire.gov.uk

You will not be paid any ESA whilst the 'mandatory reconsideration' is processed. You may wish to consider claiming other benefits such as New Style Jobseekers Allowance or Universal Credit during this time.

If you need further advice on challenging a decision or would like to discuss your entitlement to ESA you can contact Nottinghamshire County Council for more information using the details provided below.

Contact information:

Phone: 0300 500 80 80
Monday - Friday, opening times may vary.
Calls are charged at local rate.

Email: enquiries@nottscc.gov.uk
Website: www.nottinghamshire.gov.uk

Phone 0300 500 80 80 if you need the information in a different language or format.

The Council is committed to protecting your privacy and ensuring all personal information is kept confidential and safe. For more details see our general and service specific privacy notices at: <https://www.nottinghamshire.gov.uk/global-content/privacy>